Commentary
September 26, 2022

Is the UN Security Council Reform Realistic?

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Summary

The debate about the need to reform the UN Security Council has been going on for decades. Today, all UN member states acknowledge that the Security Council is not fully capable of performing its function of maintaining international peace and security. However, this consensus is not enough to increase its efficacy.

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During the High-Level Meeting of the 77th session of the UN General Assembly, there were repeated calls to reform the main organ for maintaining global peace and security – the UN Security Council (UNSC). It is noteworthy that Joseph Biden became the first American president who, from the rostrum of the General Assembly, spoke out in favour of Security Council reform. He stated that the UN as a whole should be "more inclusive" and that the US "supports an increase in the number of both permanent and non-permanent members" of the Security Council. A week earlier, the US State Department called UNSC reform one of the Biden administration's top priorities at the UN.

Other permanent members of the Security Council also do not oppose the idea of a reform. For example, Russian Foreign Minister Sergei Lavrov said that "both the Council and the UN as a whole must adapt to modern realities." At the same time, Moscow sees the prospects for a reform "specifically in expanding the representation of the countries of Africa, Asia and Latin America." Washington, on the other hand, would also like to include in its permanent membership countries that it "has long supported", that is, such allies as Germany and Japan. In other words, when moving from a general declaration to specifics, the consensus on the UNSC reform disappears.

Disconnect of the UN Security Council with the reality of the world

The UN and the entire system of international institutions associated with it are now facing the most difficult challenges since the founding of the Organization in 1945. The UN Charter, as well as the structure and composition of the UNSC, reflected the balance of power in the system of international relations that emerged as a result of World War II. In the context of the formation, development and later collapse of the bipolar system of international relations in 1945-1991, the UN as a whole retained its functionality and legitimacy as the basis of global multilateralism. Although its key body - the Security Council - remained unchanged (with the exception of the 1963/65 reform) in the face of significant international transformations and a sizeable increase in the number of the member states.

After 1991, *i.e.* after the formation of the "unipolar moment" in the system of international relations, the composition and structure of the UNSC no longer fully corresponded to the realities of the world. However, the organ was able to maintain basic legitimacy (at the expense of functionality), since the world hegemon, if necessary, could afford unilateral or coalition actions bypassing the UNSC, and other key states did not yet have sufficient potential to prevent unilateral US actions. At the same time, it was disadvantageous for other permanent members of the Security Council to seriously raise the issue of its reform, since with a high probability this would have deprived them of their exclusive status as one of the five great powers.

> It is disadvantageous for them even today, but the ongoing transformation of the system of international relations is causing such a level of global destabilization, in which the functionality and legitimacy of the unreformed UN Security Council will deteriorate much more seriously than before.

In this case, the legitimacy and functionality of the entire UN system will be undermined.

In favour of the reform, but what kind?

The majority of the UN member states have long agreed with the need to reform the Security Council. It is noteworthy that back in 1993 an Open-ended Working Group was established to consider all aspects of Security Council reform. Subsequently, on the sidelines of the UN, it received the unofficial name of the "endless working group." And in 2008, informal intergovernmental negotiations on the reform of the UNSC began.

Two key arguments are traditionally used to rationalize the need to reform the UNSC:

1. *The current format of the Security Council is unfair and unrepresentative* (since the reform of 1965 more than 70 new states have been admitted to the UN) in terms of both regional/continental representation and the representation of modern centres of political, economic, and military power and the most densely populated countries.
2. *The current format is ineffective,* as the Security Council is increasingly unable to fulfil its statutory functions of maintaining international peace and security.

As part of a long discussion on the UNSC reform, numerous proposals have been formulated that relate to a wide variety of structural and procedural aspects:

- Various options for expanding the composition of permanent and non-permanent members in order to increase the representativeness of the Security Council and reduce imbalances between regions, between developed and developing countries, reward states that provide the greatest contribution to the UN budget and peacekeeping missions, etc.;
- Limiting the possibility to use the veto power;
- Enhancing the transparency of the UNSC discussions and procedures;
- Wider dissemination of informal procedures and mechanisms (for example, the Arria formula) for working with complex cases;
- Improving the interaction of the Security Council with other UN bodies.

A number of proposals are put forward collectively by groups of countries. Among the most consolidated are the G4, United for Consensus, Ezulwini Consensus, L.69 Group, and the ACT (Accountability, Transparency and Coherence) Group. A more abstract agenda for the democratization of the UNSC is traditionally promoted by the Non-Aligned Movement.

Sporadically, the Secretary General articulates proposals. For example, in 2005, Kofi Annan offered a “more effective formula for membership in the Security Council”, involving the election of non-permanent members for a 4-year period with the possibility of re-election. The report of the current Secretary-General, António Guterres, “Our Common Agenda” (2021), also refers to the importance of the UNSC reform, although the report does not contain specific proposals for reforms, but only scratches the surface of some related ideas (for example, the creation of an Emergency Platform to respond to complex global crises) as a way to reduce tension due to the increasingly frequent dysfunction of the UNSC.

> At the same time, studies show that the majority of the reforms proposed under the slogans of “fair representativeness” and “effectiveness”, in fact, even theoretically, cannot lead to an improvement in both areas.

For example, researchers at the University of Sheffield have found that only two of the reforms proposed since the early 1990s would potentially meet both criteria to one degree or another. This is the activation of the veto power only in case if at least two permanent members of the UNSC are ready to use it, and the preservation of only one seat on the Security Council for the EU member states, where the EU would speak on their behalf with one voice.

Reform dead end

The UNSC reform will require amending the UN Charter. This means that a proposed reform must first receive the support of at least 2/3 of the member states when voting in the General Assembly, and then at least 2/3 of the member states must pass these changes through the national ratification procedures. Moreover, ratification by all five current UNSC permanent members is required. These prerequisites make getting out of the current dead end almost impossible.

Hypothetically, it is feasible to imagine some options of reforms that could receive the required support both in the General Assembly and in national parliaments. However, these would rather be decorative reforms that do not simultaneously increase the UNSC’s representativeness and effectiveness, or even just effectiveness. And certainly no breakthrough compromises should be expected against the ongoing structural changes in the system of international relations, which have “suspended” the whole world in a state of uncertainty about the future balance of forces and interests between the largest states and their alliances.

> Thus, the consensus on the need to reform the Security Council will remain declarative until the contours of the future system of international relations become clear.

This means that the UNSC’s legitimacy and functionality and of the entire UN system will continue to decline. Under such conditions, crises and wars will multiply on all continents, and decisions on key issues of war and peace will be regularly transferred to fragmented and increasingly conflicting platforms.

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